

23NWCV01517 23NWCV01517

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#13

QUINTERO. v. AMERICAN HONDA MOTOR CO., INC.

CASE NO.: 23NWCV01517

HEARING: Tuesday, August
4, 2026, at 9:30 AM

Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$19,532.5 and costs of \$6,058.51. in costs.

This amount is to be paid by no later than 90 days
from the date of the Court's issuance of this Order. This date may be extended
by agreement of the parties.

Moving Party to give
notice.

Background

The relevant procedural history of this case is as follows: On
May 17, 2023, Plaintiff JONATHAN ZAVALA QUINTERO ("Plaintiff") filed this
"lemon law" action against Defendants AMERICAN HONDA MOTOR CO., INC.
("Defendant") and DOES 1 through 10, inclusive. On April 25, 2025, the parties
resolved the case through settlement.

Plaintiffs now move for attorney's fees in the amount of \$28,614.00

with a 1.5 multiplier. Plaintiff also seeks to recoup \$6,058.51 in costs.

Prevailing Party

Cal. Civ. Code

§1794(d) states, “[i]f the buyer prevails in an action under [the Song Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

It is undisputed

that Plaintiffs are the prevailing party in this action and are entitled to reasonable attorney’s fees. The only issue pending before this Court is the amount of the award.

Legal Standard

The matter of

reasonableness of a party’s attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) When assessing the amount of any attorneys fee award, courts typically determine what is reasonable through the application of the “lodestar” method. Under the lodestar method, a base amount is calculated from a compilation of (1) time reasonably spent and (2) the reasonable hourly compensation of each attorney. (*Serrano v. Priest* (“*Serrano III*”) (1977) 20 Cal.3d 25, 48); (See also *Meister v. Regents of University of California* (1998) 67 Cal.App.4th 437, 448-449 holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation). Normally, a “reasonable” hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) That amount may then be adjusted through the consideration of various factors, including “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The Court is vested with discretion to

determine which claimed hours were reasonably spent, and what an attorneys reasonable hourly rate is. (Dover Mobile Estates v. Fiber Form Products, Inc. (1990) 220 Cal.App.3d 1494, 1501); (See also Flannery v. California Highway Patrol (1987) 61 Cal.App.4th 629, 644.) ["We readily acknowledge the discretion of the trial judge to determine the value of professional services rendered in his or her court."].

Attorney's
Fees

Plaintiffs' Counsels' Firm, Knight Law Group, bills at a rate from \$145/hr to \$550/hr. (See Kirnos Decl., ¶28(a)-(m).) A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexier (2000) 22 Cal.4th 1064, 1095.) The Court finds that Plaintiff Counsels' hourly rates are reasonable.

Plaintiff has established an entitlement to reasonable fees in the amount of \$19,532.50. The Court's determination is undertaken in the exercise of its discretion to determine whether or not rates or hours are reasonable. (Dover Mobile Estates v. Fiber Form Products, Inc. (1990) 220 Cal.App.3d 1494, 1501.)

The Court has carefully reviewed the declarations submitted by counsel. The Court agrees with opposing counsel that a few of Plaintiff's entries are purely clerical and excessive.

Moreover,
based on the non-complexity of this case and the routine nature of lemon law litigation, the Court does not find a multiplier reasonable or necessary.

Defendant's
July 9, 2024, § 998 Offer

Defendant
contends Plaintiff is not entitled to fees following Defendant's January 9, 2024, § 998 offer.

Plaintiff
argues that only Plaintiff's accepted § 998 offer matters because of the last

offer rule.

"[U]nder the so-called 'last offer rule' ..., when a party makes successive unrevoked and unaccepted section 998 offers, the last such offer is the only operative offer with respect to the statutory benefits and burdens. [Fn. omitted.]" (Martinez v. Brownco Construction Co. (2013) 56 Cal.4th 1014, 1023 (Martinez).) Courts have applied the last-offer rule when one party made multiple statutory offers to compromise, and the final judgment was less favorable than some but not all of the offers. (E.g., Wilson v. Wal-Mart Stores, Inc. (1999) 72 Cal.App.4th 382 (Wilson); Distefano v. Hall (1968) 263 Cal. App. 2d 380 (Distefano).)

In Martinez, the California Supreme Court "assume[ed] the propriety of applying the last offer rule where, as in Distefano and Wilson, an offeree obtains a judgment or award less favorable than a first section 998 offer but more favorable than the later offer." (Martinez, supra, 56 Cal.4th at p. 1026.) However, it held that the last offer rule did not apply, where "a plaintiff serves two unaccepted and unrevoked statutory offers, and the defendant fails to obtain a judgment more favorable than either offer...." (Ibid.) The court reasoned "[i]n cases such as this, section 998's policy of encouraging settlements is better served by not applying the general contract principle that a subsequent offer entirely extinguishes a prior offer. [Citation.]" Not only do the chances of settlement increase with multiple offers [citation], but to be consistent with section 998's financial incentives and disincentives, parties should not be penalized for making more than one reasonable settlement offer. Nor should parties be rewarded for rejecting multiple offers where each proves more favorable than the result obtained at trial." (Ibid.) "Predictability of the process will not be upset by inapplicability of the last offer rule in cases where each statutory offer proves either equal or more favorable to the offeree than the judgment or award at trial." (Id. at p. 1026.)

The Court finds that the final offer rule applies. Indeed, Defendant's January 9,

2024, offer expired after Plaintiff did not accept it after 30 days. Defendant then served a new settlement offer which became the operative offer and thus, extinguished Defendant's January 9, 2024, offer. "A later offer under section 998 extinguishes any earlier offers, regardless of the validity of the offers." (Palmer v. Schindler Elevator Corp. (2003) 108 Cal.App.4th 154, 158.)

Thus, the Court does not strike Plaintiff's attorney fee's incurred after Defendant's January 9, 2024, offer.

Costs

"A verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486 (citations and quotations omitted).

"Documentation must be submitted only when a party dissatisfied with the costs claimed in the memorandum challenges them by filing a motion to tax costs." (Bach v. County of Butte (1989) 215 Cal.App.3d 294, 308.) However, "mere statements in a motion to strike and attorney declaration are insufficient to rebut the prima facie showing." (Rojas v. HSBC Card Services Inc. (2023) 93 Cal.App.5th 860, 896.)

On February 17, 2026, Plaintiff served a verified Memorandum of Costs. Defendant failed to challenge Plaintiff's costs and thus costs are awarded in full.

CONCLUSION

Accordingly, the Court grants attorney fees in the reduced, but reasonable, amount of \$19,532.5 and costs of \$6,058.51.

Plaintiff's Objection No. 1-4 are OVERRULED.